

25VECP01959 25VECP01959

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-03

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Case Number: 25VECP01959 Hearing Date: August 3, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Soraya

Moazaam, as an individual, Trustee of the Dr. Mohebbi Revocable Trust, and
Executor of the Dr. Mohebbi Estate,

Plaintiff,

v.

Evane K. Abbassi aka Evan Khyabani

Abbassi, et al.

Defendants.

Case Number Department

25VECV01959 107

COURT'S [TENTATIVE]

ORDER RE:

Motion
to Compel Further Discovery Responses

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

This

is a legal malpractice action. Plaintiff Soraya Mozaam ("Plaintiff") is the surviving spouse of Dr. Mohebbi. (First Amended Complaint ["FAC"] ¶ 1.) Plaintiff brings this action in her individual capacity and as Trustee of the Dr. Mohebbi Revocable Trust and as Executor of Dr. Mohebbi's estate. (FAC ¶ 1.)

On

October 31, 2022, Plaintiff retained Defendant Evane K. Abbassi aka Evan Khyabani Abbassi dba Abbassi Law Firm ("Defendant") to represent Plaintiff in a lawsuit against Dr. Mohebbi's previous manager. (FAC ¶ 7.) On December 19, 2022, Defendant, on Plaintiff's behalf, filed a petition in the Probate Court. (FAC ¶ 8.) Defendant failed to provide Plaintiff with legal services and/or advise Plaintiff reasonably in the probate action. (FAC ¶ 10.)

On

April 8, 2025, Plaintiff filed a complaint against Defendants Evane K. Abbassi aka Evan Khyabani Abbassi, Evane K. Abbassi dba Abbassi Law Firm, and Does 1 to 50, alleging causes of action for: (1) legal malpractice; (2) fraud; (3) breach of fiduciary duty; and (4) breach of contract.

On

October 21, 2025, Plaintiff filed a first amended complaint against Defendants Evane K. Abbassi aka Evan Khyabani Abbassi, Evane K. Abbassi dba Abbassi Law Firm, and Does 1 to 50, alleging causes of action for: (1) legal malpractice; (2) fraud; (3) breach of fiduciary duty; and (4) breach of contract.

On

March 5, 2026, Plaintiff filed a motion to compel Defendant Evane K. Abbassi's further responses to Request for Admissions, Set One, a motion to compel

Defendant Evane K. Abbassi's further responses to Special Interrogatories, Set One, and a motion to compel Defendant Evane K. Abbassi's further responses to Request for Production, Set One (collectively, the "Motions"). On May 13, 2026, Defendant Evane K. Abbassi (hereinafter, "Defendant") filed an opposition. On July 27, 2026, Plaintiff filed a reply. On July 28, 2026, Defendant's counsel filed a supplemental declaration. That same day, Plaintiff filed an objection to Defendant's counsel's supplemental declaration.

II.

DEFENDANT'S
COUNSEL'S SUPPLEMENTAL DECLARATION

Plaintiff

argues the court should strike Defendant's counsel's supplemental declaration because the court issued no order authorizing Defendant to file a sur-reply, it offers additional evidence and legal argument that was not included in Defendant's opposition, and improperly includes legal conclusions. (Plaintiff's Objection p. 2.) Plaintiff further argues she been deprived of a fair and reasonable opportunity to respond and did not file and serve additional papers to "avoid burdening the Court with multiple briefs." (Plaintiff's Objection p. 2.)

The

supplemental declaration responds to new evidence Plaintiff submitted with the reply, including events that occurred after Defendant filed the opposition. (Hinojosa Reply Declaration ¶ 11; Brooks Supplemental Declaration ¶ 12.) "[T]he general rule of motion practice . . . is that new evidence is not permitted with reply papers." (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, original ellipses.)

In

order to consider Defendant's responses to Plaintiff's new evidence submitted with the reply, and in the interest of considering a full record, the court will consider Defendant's counsel's supplemental declaration. If there is a specific issue Plaintiff wishes to address or dispute that is in Defendant's counsel's supplemental declaration, Plaintiff may raise it at the hearing.

III.

MEET
AND CONFER

Motions to compel further responses to interrogatories, requests for admission, and demands for inspection, copying, testing, or sampling must be accompanied by meet and confer declarations.¿ (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2033.290, subd. (b)(1), 2031.310, subd. (b)(2).)¿ “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

In opposition, Defendant argues Plaintiff failed to sufficiently meet and confer because Plaintiff failed to meet and confer in person, by telephone, or by videoconference. (Opposition p. 9.)

In reply, Plaintiff argues that Plaintiff's counsel and Defendant's counsel met and conferred on May 22, 2026, “about Plaintiff's responses to Defendant's written discovery” and Plaintiff's counsel “suggested that counsel use the opportunity, while they were already discussing discovery issues, to further meet and confer about Defendant's responses to discovery – the subject of this Motion – pursuant to the Judge's recommendation at the IDC.” (Reply p. 4.) Plaintiff states Defendant's counsel declined. (Reply p. 4.) Plaintiff's counsel further states they met and conferred telephonically about the discovery on June 5, 2026. (Reply p. 4.)

Defendant's counsel submits a supplemental declaration stating after Defendant filed the opposition, an issue arose concerning Plaintiff's discovery responses, and Defendant's counsel had a phone call with Plaintiff's counsel. (Brooks Supplemental Declaration ¶ 7.) Defendant's counsel “informed [Plaintiff's counsel] that I was not interested in participating in his efforts to belatedly comply with §2016.040 and cure the fatal defect of his pending motions -- and mentioned that any such meet and-confer effort was required to take place before he filed his motions.” (Brooks Supplemental Declaration ¶ 7, original italics.) Defendant's counsel further states they spoke to Plaintiff's counsel on June 5, 2026. (Brooks Supplemental Declaration ¶ 12.)

Plaintiff does not dispute Defendant's representation that Plaintiff's counsel did not meet and confer in person, by telephone, or by videoconference before filing the Motions. Instead, Plaintiff's counsel's declarations submitted with the Motions detail only meet and confer letters and emails. (Hinojosa Declaration (RFPs) ¶¶ 6-7, 9; Hinojosa

Declaration (RFAs) ¶¶ 6-7, 9; Hinojosa Declaration (Interrogatories) ¶¶ 6-7, 9.) Code of Civil Procedure section 2016.040, subdivision (a) requires meeting and conferring in person, by telephone, or by videoconference. Meeting and conferring by letter or email is insufficient. Thus, Plaintiff's counsel's declarations filed with the Motions do not show Plaintiff satisfied the meet and confer requirements.

The court further finds that Plaintiff's counsel's attempts to meet and confer by telephone after filing the Motions is also insufficient. Code of Civil Procedure sections 2030.300, subdivision (b)(1), 2033.290, subdivision (b)(1), 2031.310, subdivision (b)(2), require the motions to be "accompanied by a meet and confer declaration under Section 2016.040." The court interprets this language as requiring the moving party to submit, with the motion, a declaration showing sufficient meet and confer efforts pursuant to Code of Civil Procedure section 2016.040. Plaintiff's counsel's declarations submitted with the Motions do not show meet and confer efforts that comply with Code of Civil Procedure section 2016.040. Plaintiff's counsel's attempts to cure this defect after Plaintiff filed the Motions is insufficient to satisfy Plaintiff's statutory responsibilities.

IV.

SEPARATE STATEMENTS

Plaintiff

moves to compel Defendant to provide further responses to Request for Admissions, Set One, Nos. 1, 5, 7-11, 14, 15, 22-25, and 28-31, Special Interrogatories, Set One, Nos. 7-12 and 17-18, and Request for Production, Set One, Nos. 3-9, 11-18, and 20-23. (Motion (RFAs) p. 2; Motion (Interrogatories) p. 2; Motion (RFPs) p. 2.)

California

Rules of Court, rule 3.1345(a) requires motions to compel further responses to interrogatories, requests for admission, and demands for inspection of documents or tangible things to be accompanied by a separate statement. Per California Rules of Court, rule 3.1345(c):

A separate statement

is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the

responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1) The text of the request, interrogatory, question, or inspection demand;

(2) The text of each response, answer, or objection, and any further responses or answers;

(3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;

(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Trial

courts have discretion to deny motions to compel discovery because of defective separate statements. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893.)

Plaintiff's

three separate statements are defective. In all three Motions, Plaintiff argues Defendant improperly responded with preliminary statements, general objections, and definition sections. (Motion (RFAs) pp. 6-7; Motion (Interrogatories) pp. 6-7; Motion (RFPs) p. 7.) But Plaintiff did not include the preliminary statements, general objections, or definition sections in the separate statements. (See Separate Statement (RFPs); Separate Statement (RFAs); Separate Statement (Interrogatories). Although Plaintiff attached Defendant's responses to the Motions, separate statements must include "all the information necessary to understand each discovery request and all the responses to it that are at issue" and "must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court, rule 3.1345(c).) (Hinojosa Declaration (RFAs) Ex. B pdf pp. 24-26; Hinojosa Declaration (Interrogatories) Ex. B pdf pp. 23-25; Hinojosa Declaration (RFPs) Ex. B pdf pp. 24-26.) The text of the preliminary statements, general objections, and definitions are necessary for the court to rule on the three Motions. Plaintiff's failure to include this information renders the separate statements deficient.

Further,

specific to the Motion to Compel Further Responses to RFPs, Defendant served Plaintiff with supplemental responses to RFP Nos. 1, 2, 12, 13, 14, 15, 16, 17, 18, and 19. (Hinojosa Declaration (RFPs) Ex. G pdf pp. 65-76.) Plaintiff moves to compel Defendant to provide further responses to, as relevant here, RFP Nos. 12, 13, 14, 15, 16, 17, and 18. (See Separate Statement (RFPs) pp. 12-20.) Plaintiff's separate statement does not contain the text of Defendant's supplemental responses. (See Separate Statement (RFPs) pdf pp. 12-20.) Thus, Plaintiff's separate statement submitted with the Motion to Compel Further Responses to RFPs is incomplete and does not accurately reflect Defendant's responses.

V.

SANCTIONS

"Except

as provided in subdivision (j), the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff

requests sanctions for all three Motions. (Hinojosa Declaration (RFPs) ¶ 19; Hinojosa Declaration (Interrogatories) ¶ 18; Hinojosa Declaration (RFAs) ¶ 18.) Plaintiff has not successfully moved to compel Defendant to provide further responses. Thus, the court denies Plaintiff’s requests for sanctions.

VI.

CONCLUSION

For

the foregoing reasons, the Motions are denied. Plaintiff’s requests for sanctions are also denied.

Dated: August 3, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court